Precedent memo: Basalt Brewing v. Moreno

Deschutes County Circuit Court, decided 2022-06-08 - memo by the employment group

1. Holding

The non-compete was void because Moreno was paid by the hour and was not exempt from overtime; the statute reaches only salaried, exempt employees.

2. Facts

Moreno was a head brewer paid 31 dollars an hour with overtime.

3. Firm position

We represented Moreno. Hourly pay ends the analysis.

4. Practice notes

Keep the dated documents from the first client call. The dates usually decide these cases.